

**BEFORE THE BOARD OF BEHAVIORAL HEALTH PROFESSIONALS OF
THE STATE OF IOWA**

IN THE MATTER OF: Kayla Reisinger License No. 097895 RESPONDENT	CASE NOS.: 24-0140, 24-0278 & 24-0300 COMBINATION STATEMENT OF CHARGES, SETTLEMENT AGREEMENT, AND FINAL ORDER
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COME NOW the Iowa Board of Behavioral Health Professionals (“Board”) and Kayla Reisinger (“Respondent”) and enter into this Combination Statement of Charges, Settlement Agreement, and Final Order (“Settlement Agreement”) pursuant to Iowa Code sections 17A.10(1), 272C.3(4), and Iowa Administrative Code rule 481-506.35.

A. BACKGROUND

1. **Iowa License.** Respondent was issued Iowa mental health counselor license number 097895 on December 10, 2019. Respondent’s license is active and next expires September 30, 2026.
2. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C as well as 481 Iowa Administrative Code chapters 504 and 882 (formerly 645 Iowa Administrative Code chapter 33).¹
3. **Practice Setting.** Respondent practiced mental health counseling in Cedar Falls, Iowa during the time period relevant to these allegations. Respondent currently lives in the State of Iowa.

¹ The Board of Behavioral Science merged into the Board of Behavioral Health Professionals, which now oversees additional behavioral health professionals (beyond the marital and family therapists, mental health counselors, and behavior analysts previously governed by the Board). The previous Board of Behavioral Science’s disciplinary chapter was found at 645 Iowa Administrative Code chapter 33.

4. **Allegations.** Respondent practices mental health counseling in Cedar Falls, Iowa. From April to August 2024, the Board received multiple complaints about Respondent violating professional boundaries with clients. The Board's investigation revealed the following:

- a. Client A: Respondent told a colleague she was contacting Client A, a minor, after Client A's guardian terminated counseling services. Respondent expressed a desire to take legal custody of Client A as well as a desire to continue communicating with Client A despite the termination. Further evidence revealed that Respondent had personal contact with Client A outside of business hours, attended Client A's school concerts, introduced her children to Client A, and made tentative plans to house Client A at her home. Respondent's clinical documentation for Client A did not accurately reflect what actually occurred.
- b. Client B: Respondent fostered Client's B's cat and communicated with Client B personally via Snapchat.
- c. Client C: Respondent asked Client C to house the cat of Client B.
- d. Clients F and G: Respondent saw Client F as a client. She offered and began seeing Client F's minor child, Client G, for Eye Movement Desensitization and Reprocessing (EMDR), but failed to provide any documentation or rationale for this decision. Respondent told Client F in an email that she knew doing EDMR was against best practice but proceeded to schedule and provide EDMR therapy with Client G anyway.
- e. Clients H and I: Respondent told colleagues she helped facilitate two clients to start a dating relationship.
- f. Client X: During an appointment with her personal therapist, Respondent disclosed

she was having a relationship with the caregiver of Client X, a minor. Client X's identity is unknown, but Client X is believed to have been a minor during the time of the disclosure, because Respondent also revealed she helped Client X get a prom dress.

B. STATEMENT OF CHARGES

COUNT I

5. Respondent is charged with failure to comply with the current Code of Ethics of the American Counseling Association (ACA) in violation of Iowa Administrative Code (IAC) rule 481-882.1(1)(b) (formerly IAC rule 645-33.2(1)(b)), specifically for violating ACA Code of Ethics rule A.5.a., which states in relevant part: "Sexual and/or romantic counselor-client interactions or relationships with current clients, their romantic partners, or their family members are prohibited."

COUNT II

6. Respondent is charged with violating IAC rule 481-882.1(2)(d) (formerly IAC rule 645-33.2(30)(d)), which prohibits sexual activities or sexual contact with a client's or former client's relative within the second degree of consanguinity when there is a risk of exploitation or harm to a client or former client.

COUNT III

7. Respondent is charged with failure to comply with the current Code of Ethics of the ACA in violation of IAC rule 481-882.1(1)(b) (formerly IAC rule 645-33.2(1)(b)), specifically for violating ACA Code of Ethics rules A.6.b. (Extending Counseling Boundaries) and A.6.c. (Documenting Boundary Extensions).

COUNT IV

8. Respondent is charged with failure to comply with the current Code of Ethics of the ACA in violation of IAC rule 481-882.1(1)(b) (formerly IAC rule 645-33.2(1)(b)), specifically for violating ACA Code of Ethics rules A.8. (Multiple Clients).

COUNT V

9. Respondent is charged with unethical conduct, in violation of IAC rule 481-504.2(27)) (formerly Iowa Administrative Code rule 645-33.2(29)).

COUNT VI

10. Respondent is charged with failure to comply with the current Code of Ethics of the ACA in violation of IAC rule 481-882.1(1)(b) (formerly IAC rule 645-33.2(1)(b)), specifically for violating ACA Code of Ethics rules A.6.e. (Nonprofessional Interactions or Relationships) (Other Than Sexual or Romantic Interactions or Relationships).

C. SETTLEMENT AGREEMENT

11. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Settlement Agreement. Respondent neither admits nor denies the allegations set forth above.

12. To resolve this matter without proceeding to hearing, Respondent agrees to the following conditions:

- a. ***License Suspension.*** Respondent's license to practice is **SUSPENDED** for a minimum of **SIX MONTHS** from the date this Settlement Agreement is approved by the Board. Further, Respondent's suspension shall not be lifted until Respondent 1) completes the PBI Education Professional Boundaries course (PB-24) (available at <https://pbieducation.com/courses/pb-24/>), 2) undertakes **TEN HOURS** of Continuing Education in the areas of ethics, maintaining professional boundaries,

and/or working with minor clients, and 3) has an initial meeting with her practice monitor and submits the narrative report to the Board described below. Continuing education undertaken pursuant to this Settlement Agreement will not count towards Respondent's biannual continuing education requirements.

b. ***Probation and Monitoring.*** After Respondent's **SUSPENSION** has concluded, pursuant to the terms described above, Respondent's license shall be reinstated and placed on **PROBATION** for at least **36 MONTHS** following the date Respondent's license is reinstated after suspension. Termination of probation is subject to Board approval upon the Board finding that Respondent has complied with the below conditions to the Board's satisfaction. Once Respondent's probationary term begins, it is subject to the following conditions:

- i. ***Practice Prohibitions.*** During the probationary term, Respondent shall practice only as part of an agency with at least one other independent level provider. Further, Respondent shall not supervise interns, behavioral health professionals practicing under a temporary license, or Licensed Master Social Workers.
- ii. ***Supervised Clinical Experience.*** As a condition of probation, Respondent shall complete the equivalent of another supervised clinical experience, as such is described in IAC rule 481-880.7. Respondent shall retain her current licensure (that is, her license does not revert to a temporary license) but must follow the applicable requirements of IAC rule 481-880.7 upon resuming practice post-suspension. Respondent shall complete at least 3,000 hours of supervision. Respondent may perform preliminary steps to comply with this

condition, like locating a proposed supervisor and submitting a supervision plan to the Board for approval, during her **SUSPENSION**.

- iii. ***Practice Monitor.*** In addition to completing the equivalent of a second supervised clinical experience as described above, Respondent shall also practice under the oversight of a practice monitor during the probationary term. Respondent shall submit the name and credentials of a proposed practice monitor no later than **30 DAYS** after the date this Settlement Agreement is approved by the Board. The proposed practice monitor must be a licensed mental health provider in Iowa with no disciplinary history and have at least 8 years of experience. The practice monitor may not work at the same organization or business as Respondent or have a pre-existing personal or professional relationship with her. After receiving approval from the Board's Executive, who may consult with one or more Board members when considering whether to approve the proposed practice monitor, Respondent shall meet with the practice monitor to discuss this Settlement Agreement and the circumstances that led to discipline. Respondent and practice monitor shall also discuss establishing and maintaining boundaries with clients and other relevant topics. Following this initial meeting with the practice monitor, Respondent shall submit a narrative report to the Board describing the conversation, the best practices discussed, and Respondent's plans to implement best practices moving forward.

- iv. After the initial meeting with the practice monitor, Respondent shall meet with the practice monitor at least quarterly during the remainder of the probationary term. Respondent and practice monitor shall discuss Respondent's progress on implementing the best practices previously discussed and any barriers or challenges that have arisen. During each meeting, the practice monitor shall also perform a clinical practice audit by reviewing a random sample of Respondent's progress notes for client appointments and communications with clients to identify concerns. Respondent shall provide the practice monitor with unrestricted access to Respondent's emails, messages, or other communications with clients to facilitate this review. The monitor will discuss any concerns with Respondent (and will report to the Board if warranted). The practice monitor may require Respondent to complete readings or other assignments ahead of scheduled meetings. In the event of a report to the Board from Respondent's practice monitor indicating concerns with Respondent's practice or recommending future monitoring or practice restrictions, the Board may open a new complaint.
- v. Respondent shall ensure the practice monitor submits a written report to the Board for each required meeting with the practice monitor regarding the clinical practice audit and confirming Respondent's compliance with this Settlement Agreement. Each year, the Quarter 1 (January-March) report is due no later than April 5, the Quarter 2 (April-June) report is due no later than July 5, the Quarter 3 (July-September) report is due no later than

October 5, and the Quarter 4 (October-December) report is due no later than January 5.

- vi. Respondent shall submit a written report to the Board for each required meeting with the practice monitor (other than the initial meeting, for which a specific written report, described above, is required) providing a short overview of the work done with her practice monitor. Each year, the Quarter 1 (January-March) report is due no later than April 5, the Quarter 2 (April-June) report is due no later than July 5, the Quarter 3 (July-September) report is due no later than October 5, and the Quarter 4 (October-December) report is due no later than January 5.
- vii. All reports made to the Board by Respondent and the practice monitor are confidential and not part of this Settlement Agreement.
- viii. Respondent shall be responsible for any costs associated with the practice monitor.
- ix. Respondent shall appear before the Board upon reasonable notice.
- x. Promptly following the Board's approval of this Settlement Agreement, Respondent shall notify all current employers of this Settlement Agreement. Respondent will notify any future professional services employers of this Settlement Agreement immediately upon hiring.
- xi. Only time periods in which Respondent is practicing as a mental health counselor with a practice monitor will count towards completion of the **36 MONTHS** of probation. If Respondent is not working as a mental health

counselor, the probationary term will be extended until she has successfully completed **36 MONTHS** of monitored practice.

13. In entering this Settlement Agreement, Respondent acknowledges the following:

- a. This Settlement Agreement is subject to the approval of the Board and will have no force or effect if it is not accepted by the Board.
- b. Counsel for the State may present this Settlement Agreement to the Board *ex parte*.
- c. I have the right to be represented by counsel in this matter. I am represented by Mark Schultheis of Schultheis White, PLC.
- d. I understand I have an opportunity to be heard and to contest the allegations against me in a formal hearing before the Board and that, by waiving the formal hearing, I waive my right to challenge the allegations against me and all attendant rights, including the right to seek judicial review of the Board's actions.
- f. I understand this Settlement Agreement will be part of my permanent licensure file and may be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
- g. I am voluntarily entering into this Settlement Agreement.
- h. Failure to comply with the provisions of this Settlement Agreement shall be grounds for further disciplinary action pursuant to Iowa Code § 272C.3(2)(a).
- i. I understand the Board will report this Settlement Agreement to the National Practitioner Databank ("NPDB"). Such report to the NPDB will reflect the language included in this Settlement Agreement.
- j. I understand I am responsible for all expenses incurred by me to comply with the conditions and requirements of this Settlement Agreement.

- k. The factual circumstances alleged, by virtue of their incorporation in this Settlement Agreement, are now public and available for inspection and copying in accordance with Iowa Code chapters 22 and 272C.
14. Respondent shall submit a copy of this Settlement Agreement to all applicable licensing boards where Respondent holds a professional license (other than the Iowa Board of Behavioral Health Professionals), whether active or not, no later than **THIRTY DAYS** following the date this Settlement Agreement is approved by the Board.
15. This Settlement Agreement constitutes discipline against Respondent and is the final agency action in a contested case pursuant to Iowa Code § 17A.10.
16. This Settlement Agreement shall not preclude the Board from taking additional action against Respondent should Respondent violate laws, rules, or standards of practice administered by the Board in the future.
17. This Settlement Agreement, when fully executed, is a public record available for inspection and copying in accordance with the requirements of Iowa Code chapters 17A, 22, and 272C.
18. The Board's approval of this Settlement Agreement shall constitute a **FINAL ORDER** of the Board.

A. FINAL ORDER

WHEREFORE, the terms of this Settlement Agreement are agreed to by the Iowa Board of Behavioral Health Professionals and the Respondent.

IT IS THEREFORE ORDERED,

- a. Respondent's license to practice is **SUSPENDED** for a minimum of **SIX MONTHS** from the date this Settlement Agreement is approved by the Board. Further, Respondent's suspension shall not be lifted until Respondent 1) completes the PBI

a. Respondent's license to practice is **SUSPENDED** for a minimum of **SIX MONTHS** from the date this Settlement Agreement is approved by the Board. Further, Respondent's suspension shall not be lifted until Respondent 1) completes the PBI Education Professional Boundaries course (PB-24) (available at <https://pbieducation.com/courses/pb-24/>), 2) undertakes **TEN HOURS** of Continuing Education in the areas of ethics, maintaining professional boundaries, and/or working with minor clients, and 3) has an initial meeting with her practice monitor and submits the narrative report to the Board described above.

b. After Respondent's **SUSPENSION** has concluded, pursuant to the terms described above, Respondent's license shall be reinstated and placed on **PROBATION** for at least **36 MONTHS** following the date Respondent's license is reinstated after suspension. Respondent shall comply with the conditions of her probation and practice monitoring described above in Section C.

c. Any documents, notifications, or reports required to be submitted to the Board pursuant to this Settlement Agreement should be mailed to the Iowa Department of Inspections, Appeals and Licensing, Iowa Board of Behavioral Health Professionals Therapy, Division of Professional Licensing and Regulation, Licensing Bureau, 6200 Park Avenue, Suite 100, Des Moines, Iowa 50321, or emailed to PLPublic@idph.iowa.gov.

FOR THE RESPONDENT:

Voluntarily agreed to and accepted by Kayla Reisinger on this 5th day of September, 2025.


By: Kayla Reisinger, Respondent

FOR THE BOARD OF BEHAVIORAL HEALTH PROFESSIONALS:

Voluntarily agreed to and accepted by the Board of Behavioral Health Professionals on this
30th day of September, 2025.


Chair
Board of Behavioral Health Professionals

Copy to:

Kayla Reisinger
RESPONDENT

Mark Schultheis
mas@swlawiowa.com
ATTORNEY FOR RESPONDENT